BLACKLAND COLOCATION LLC
4200 Lakeshore Industrial Pkwy, Garland, Texas 75041 · (972) 555-0148 · blacklandcolo.example

MASTER SERVICES AGREEMENT No. DFW-MSA-1041

Effective Date: 2022-04-18
Site: DFW1 Data Center, 4200 Lakeshore Industrial Pkwy, Garland, Texas

PROVIDER	**Blackland Colocation LLC, a Texas limited liability company** 4200 Lakeshore Industrial Pkwy, Garland, Texas 75041
CUSTOMER	**Mesquite Cloud LLC** Account No. C1041 · Cage CG-101

This Master Services Agreement (the "Agreement") is entered into as of the Effective Date by and between Blackland Colocation LLC ("Provider") and Mesquite Cloud LLC ("Customer"). Provider operates the DFW1 data center and licenses colocation space, power and cooling to Customer under order forms issued under this Agreement (each an "Order Form").

1. DEFINITIONS

1.1 "Licensed Cabinets" means the cabinets identified in an Order Form, together with the floor space they occupy.

1.2 "Contracted Feeds" means the power feeds to a Licensed Cabinet that an Order Form describes.

1.3 "Scheduled Maintenance" means maintenance of the facility power, cooling or life-safety infrastructure for which Provider gives notice under Section 9.

1.4 "Power Availability" means the share of minutes in a calendar year in which no Power Outage (Section 7.2) affects a Licensed Cabinet.

2. TERM

2.1 This Agreement begins on the Effective Date and continues until the last Order Form under it expires or is terminated.

2.2 Each Order Form states its own term. An Order Form renews for successive twelve-month periods unless either party gives ninety (90) days written notice of non-renewal.

3. SERVICES

3.1 Provider will provide the space, power, cooling, physical security and remote hands described in each Order Form. Customer equipment remains the property of Customer.

4. FEES AND PAYMENT

4.1 Customer will pay the charges stated in each Order Form. Recurring charges are invoiced monthly in advance and are due within thirty (30) days of the invoice date.

4.2 Amounts not paid when due bear interest at the lesser of 1.0% per month or the highest rate permitted by law.

5. CUSTOMER OBLIGATIONS

5.1 Customer will keep the load in each Licensed Cabinet within the committed power stated in the Order Form and will connect redundant equipment to every Contracted Feed.

5.2 Customer will not install equipment that exceeds the floor loading or heat density limits Provider publishes for the data hall.

6. ACCESS AND SECURITY

6.1 Access to the data hall is limited to individuals on Customer's authorized access list, who must present government-issued photo identification and comply with Provider's site rules.

7. SERVICE LEVELS

7.1 Availability Commitment. Provider will maintain Power Availability of 99.999% per calendar year, excluding Scheduled Maintenance (Section 9).

7.2 Power Outage. A Power Outage occurs when a Licensed Cabinet loses power on all contracted feeds. For redundant (A+B or 2N) service, loss of a single feed is not a Power Outage.

7.3 Environmental Commitment. Provider will keep the air temperature at the cold aisle face of each Licensed Cabinet between 64.4 °F and 80.6 °F (18 °C to 27 °C, the ASHRAE Class A1 recommended range), as measured by Provider's cold aisle sensors and recorded by its building management system. An Environmental Excursion is a period of more than ten (10) consecutive minutes outside that range.

7.4 Exclusions. No credit is owed where (a) the Customer is not connected to all contracted feeds, (b) Customer load on a redundant pair exceeds 80% of a single circuit rating, (c) the event occurs during Scheduled Maintenance, or (d) an Environmental Excursion is caused by Customer equipment drawing more than its committed power or by missing blanking panels in a Licensed Cabinet.

8. SERVICE CREDITS

8.1 Power credits. Each band below is credited once per calendar year, as a percentage of the Monthly Recurring Charge (MRC) of the affected Licensed Cabinets for the month in which cumulative Power Outage in that calendar year first exceeds it:

Cumulative Power Outage per calendar year	Credit
More than 5.26 minutes (below 99.999%)	5% of MRC
More than 60 minutes	10% of MRC
More than 240 minutes	25% of MRC
More than 720 minutes	50% of MRC

8.2 Environmental credits. Each Environmental Excursion is credited on the MRC of the affected Licensed Cabinets for the month in which it begins:

Environmental Excursion duration	Credit
More than 10 minutes, up to 4 hours	5% of MRC
More than 4 hours, up to 24 hours	10% of MRC
More than 24 hours	25% of MRC

8.3 Total credits in any month shall not exceed 50% of that month's MRC. Credits are the sole and exclusive remedy except as provided in Section 8.4 (chronic failure termination right).

8.4 Chronic failure. If cumulative Power Outage exceeds 720 minutes in a calendar year, or Environmental Excursions occur in each of three consecutive months, Customer may terminate the affected Order Form on thirty (30) days written notice without early termination charges.

9. SCHEDULED MAINTENANCE

9.1 Provider will give at least ten (10) business days written notice of Scheduled Maintenance.

9.2 Provider will use commercially reasonable efforts to keep at least one contracted feed energized during Scheduled Maintenance for redundant service.

9.3 Provider may perform emergency maintenance without advance notice where needed to prevent harm to persons or equipment, and will notify Customer as soon as practicable.

10. GENERAL

10.1 This Agreement is governed by the laws of the State of Texas. Venue for any dispute lies in the state or federal courts located in Dallas County, Texas.

10.2 This Agreement, with its Order Forms, is the entire agreement of the parties about its subject matter and supersedes all prior proposals and understandings.

IN WITNESS WHEREOF, the parties have executed this Agreement by their duly authorized representatives as of the Effective Date.

BLACKLAND COLOCATION LLC

Signed electronically by:
Grant Holloway
5E58-50E4-73AE-9C3B

By: Grant Holloway
Title: Director, Customer Operations
Date: 2022-04-18

MESQUITE CLOUD LLC

Signed electronically by:
Derek Anand
3194-76D9-4C0D-E5A0

By: Derek Anand
Title: Chief Technology Officer
Date: 2022-04-17